

Date Of Decision: 2.9.2024 vs State Of Himachal Pradesh And Ors on 2 September, 2024

Author: Sandeep Sharma

Bench: Sandeep Sharma

2024:HHC:782

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

CrMMO No. 734 of 2024

Date of Decision: 2.9.2024

Ashok Walia and Anr.

Versus

State of Himachal Pradesh and Ors.

.....Petitioners

.....Respondents

Coram

Hon'ble Mr. Justice Sandeep Sharma, Judge.

Whether approved for reporting?

For the Petitioners: Mr. Surinder Saklani, Advocate.

For the Respondents: Mr. Rajan Kahol, Mr. Vishal Panwar and Mr. B.C. Verma, Additional Advocates General with Mr. Ravi

Chauhan, Deputy Advocate General, for the State.

Mr. Maan Singh, Advocate, for respondents No. 2 and 3.
HC Darshana WPS Dharamshala, present with record.

Sandeep Sharma, J. (Oral)

By way of instant petition, prayer has been made on behalf of the petitioner for quashing of FIR No. 27/23, dated 27.8.2023, under Sections 498-A, 504 and 506 of IPC, registered with Women Police Station Dharamshala, District Kangra, Himachal Pradesh as well as consequent proceedings, if any, pending before the court below, on the basis of compromise/amicable settlement arrived inter-se parties.

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2. Precisely, the case of the petitioners, as emerges from the .

pleadings is that the FIR sought to be quashed in the instant proceedings came to be lodged at the behest of respondent No.2 (hereinafter, 'complainant'), who alleged that her marriage was solemnized on 23.2.2023, with proforma respondent No.3 Ayush Walia as per Hindu Rites and Customs. She alleged that immediately after her marriage with aforesaid person, her in-laws i.e. petitioners as well as proforma respondent No.3 started harassing her mentally and physically for bringing lesser dowry.

She alleged that repeatedly, she was compelled to bring money from her parents. She alleged that on many occasions, her parents, besides bringing articles demanded from time to time, also transferred cash in the bank accounts of the accused named in the FIR. She alleged that since she was unable to bear pressure of demands of the petitioners, she left her matrimonial house and started living with her parents w.e.f. 26.5.2023. In the aforesaid background, FIR sought to be quashed came to be instituted against the petitioners.

3. Though after completion of investigation, police has presented challan in the competent court of law, but before same could be taken to its logical end, parties entered into compromise, whereby they have resolved to settle their dispute amicably inter-se them. In the aforesaid backdrop, 3 2024:HHC:7820 petitioners and proforma respondent No.3 have approached this Court in .

the instant proceedings for quashing of FIR.

4. It further emerges from the pleadings that parties have entered into compromise, whereby both respondents No.2 and 3 have decided to get their marriage dissolved by way of mutual consent and in this regard, have filed petition under Section 13 B of the Hindu Marriage Act, before the learned Principal Judge Family Court, Palampur. Court concerned has already recorded the statement of first motion and has adjourned the matter for recording the statement of second motion for 25.2.2025.

5. As per agreed terms, respondent No.3 has agreed to pay sum of Rs. 13.00 lac as permanent alimony, out of which 50% has already been paid to respondent No.2 and remaining amount has been agreed to be paid at the time of recording of statement of second motion. Besides above, parties have also returned the jewelry allegedly given by them to each other at the time of their marriage.

6. Pursuant to direction issued in terms of order dated 2.8.2024, respondent-State has filed status report under the signature of Station House Officer, WPS Dharamshala, District Kangra, Himachal Pradesh, wherein factum with respect to compromise has been duly acknowledged.

Besides above, respondent No.2-Smt. Saloni Walia, has come present in 4 2024:HHC:7820 person and is being represented by Mr. Maan Singh, Advocate. She states .

on oath that she of her own volition has entered into compromise, whereby both the parties have resolved to settle their dispute amicably inter se.

She states that since after lodging of FIR sought to be quashed, parties have arrived at an amicable settlement, she and her husband Ayush Walia, have already filed petition under Section 13 B of the Hindu Marriage Act for dissolution of marriage by way of mutual consent. She states that she has also received 50% of the alimony agreed to be paid and as such, does not wish to prosecute the case further. She states that otherwise also, FIR is result of misunderstanding, coupled with the fact that petitioners and proforma respondent No.3 have apologized for their behaviour, she shall have no objection in case FIR as well as consequent proceedings are quashed and petitioners and respondent No.3 are acquitted of the charges framed against them. While admitting contents of the compromise to be correct, she also admits her signatures on the same.

7. Having heard the statement made on oath by respondent No.2- complainant, Mr. B.C. Verma, learned Additional Advocate General states that no fruitful purpose will be served in case FIR as well consequent proceedings are allowed to continue against the petitioners. He further states that otherwise also, chances of conviction of the petitioners are 5 2024:HHC:7820 remote and bleak, on account of statement made by complainant, as such, .

he shall have no objection in case prayer made on behalf of the petitioners and proforma respondent No.3 is accepted and FIR in question alongwith consequential proceedings is quashed and set aside and petitioners are acquitted.

8. The question which now needs consideration is whether FIR in question can be ordered to be quashed when Hon'ble Apex Court in Narinder Singh and others versus State of Punjab and another (2014)6 SCC 466 has specifically held that power under S. 482 CrPC is not to be exercised in the cases which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society.

9. At this stage, it would be relevant to take note of the judgment passed by Hon'ble Apex Court in Narinder Singh (supra), whereby the Hon'ble Apex Court has formulated guidelines for accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings. Perusal of judgment referred to above clearly depicts that in para 29.1, Hon'ble Apex Court has returned the findings that power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the 6 2024:HHC:7820 offences under Section 320 of the Code. No doubt, under Section 482 of the .

Code, the High Court has inherent power to quash criminal proceedings even in those cases which are not compoundable and where the parties have settled the matter between themselves, however, this power is to be exercised sparingly and with great caution. In para Nos. 29 to 29.7 of the judgment Hon'ble Apex Court has laid down certain parameters to be followed, while compounding offences.

10. Careful perusal of para 29.3 of the judgment suggests that such a power is not to be exercised in the cases which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Apart from this, offences committed under special statute like the Prevention of Corruption Act or the offences committed by Public Servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender. On the other hand, those criminal cases having overwhelmingly and predominantly civil character, particularly arising out of commercial transactions or arising out of matrimonial relationship or family disputes may be quashed when the parties have resolved their entire disputes among themselves.

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11. The Hon'ble Apex Court in Gian Singh v. State of Punjab and .

anr. (2012) 10 SCC 303 has held that power of the High Court in quashing of the criminal proceedings or FIR or complaint in exercise of its inherent power is distinct and different from the power of a Criminal Court for compounding offences under Section 320 Cr.PC. Even in the judgment passed in Narinder Singh's case, the Hon'ble Apex Court has held that while exercising inherent power of quashment under Section 482 Cr.PC the Court must have due regard to the nature and gravity of the crime and its social impact and it cautioned the Courts not to exercise the power for quashing proceedings in heinous and serious offences of mental depravity, murder, rape, dacoity etc. However subsequently, the Hon'ble Apex Court in Dimpey Gujral and Ors. vs. Union Territory through Administrator, UT, Chandigarh and Ors. (2013) 11 SCC 497 has further reiterated that continuation of criminal proceedings would tantamount to abuse of process of law because the

alleged offences are not heinous offences showing extreme depravity nor are they against the society. Hon'ble Apex Court further observed that when offences of a personal nature, burying them would bring about peace and amity between the two sides.

12. Hon'ble Apex Court in its judgment dated 4th October, 2017, titled as Parbatbhai Aahir @ Parbatbhai Bhimsinhbhai Karmur and 8 2024:HHC:7820 others versus State of Gujarat and Another, passed in Criminal Appeal .

No.1723 of 2017 arising out of SLP(Crl) No.9549 of 2016, reiterated the principles/ parameters laid down in Narinder Singh's case supra for accepting the settlement and quashing the proceedings.

13. In the case at hand also, offences alleged to have been committed by the petitioners do not involve offences of moral turpitude or any grave/heinous crime, rather same are petty offences, as such, this Court deems it appropriate to quash the FIR as well as consequential proceedings thereto, especially keeping in view the fact that the petitioners and the complainant have compromised the matter inter-se them, in which case, possibility of conviction of the petitioners is remote/bleak and no fruitful purpose would be served in continuing with the criminal proceedings.

14. Since parties have compromised the matter with each other and respondent No.2-complainant, at whose instance, FIR sought to be quashed in the instant proceedings came to be lodged, is no more interested in pursuing the criminal prosecution of the petitioners, this court sees no impediment in accepting the prayer made on behalf of the petitioners for quashing of the FIR alongwith all consequential proceedings.

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15. Consequently, in view of the aforesaid discussion as well as law .

laid down by the Hon'ble Apex Court (supra), FIR No. 27/23, dated 27.8.2023, under Sections 498-A, 504 and 506 of IPC, registered with Women Police Station Dharamshala, District Kangra, Himachal Pradesh as well as consequent proceedings, are quashed and set aside. Accused are acquitted of the charges framed against them.

16. Needless to say, Court concerned while considering the prayer made on behalf of the parties under Section 13-B of the Hindu Marriage Act, would not insist for 'cooling period' especially when there is no possibility of rapprochement and marriage inter se them has broken beyond repair. This Court taking note of various judgments of Hon'ble Apex court has repeatedly held that there is no requirement of 'cooling period' of six months in the cases where marriage has broken beyond repair and there is no possibility of parties living together. Reliance in this regard is placed upon judgment rendered by this Court in Bharti Kapoor v . Des Raj, CMPMO No. 271 of 2017, decided on 31.10.2018, wherein it has been held as under:

"8. Accordingly, for the reasons and circumstances narrated herein above, present petition is ordered to be converted into a petition under Section 13B of Hindu

Marriage Act. Since both the parties are living separately for the last many years and they have been litigating with each other, statutory period of six months as envisaged under Section 13B of the Act for grant of divorce by way of mutual consent, can be 10 2024:HHC:7820 waived, especially when there is no possibility of rapprochement of the .

parties and marriage has broken beyond repair. In this regard, it would be apt to take note of the judgment rendered by the Hon'ble Apex Court in *Veena vs. State (Government of NCT of Delhi)* and another, (2011)14 SCC 614, wherein the Hon'ble Apex Court has held as under:

12." We have heard the learned counsel for the parties and talked to the parties. The appellant has filed a divorce petition under Section 13(1)(a) of the Hindu Marriage Act, 1955, being HMA No.397/2008 which is pending before the Court of Sanjeev Mattu, Additional District Judge, Karkardooma Courts, Delhi. In the peculiar facts and circumstances of this case, we deem it appropriate to transfer the said divorce petition to this Court and take the same on Board. The said petition is converted into one under Section 13B of the Hindu Marriage Act and we grant divorce to the parties by mutual consent."

9. Reliance is also placed on a judgment rendered by Hon'ble Apex Court in *Priyanka Khanna v. Amit Khanna*, (2011) 15 SCC 612, wherein Hon'ble Apex Court has held as under:-

"7. We also see from the trend of the litigations pending between the parties that the relationship between the couple has broken down in a very nasty manner and there is absolutely no possibility of a rapprochement between them even if the matter was to be adjourned for a period of six months as stipulated under Section 13-B of the Hindu Marriage Act. 8. We also see from the record that the first litigation had been filed by the respondent husband on 2.6.2006 and a petition for divorce had also been filed by him in the year, 2007. We therefore, feel that it would be in the interest of justice that the period of six months should be waived in view of the above facts."

10. In the instant case also, statutory period of six months deserves to be waived keeping in view the fact that the marriage between the parties has broken beyond repair and there seems to be no possibility of parties living together. The Hon'ble Apex Court in Civil Appeal No.11158 of 2017 [arising out of Special Leave Petition (Civil) No.20184 of 2017] titled as *Amardeep Singh vs. Harveen Kaur*, decided on 12.09.2017, has held as under:-

"13. Learned amicus submitted that waiting period enshrined under Section 13(B)2 of the Act is directory and can be waived by the court where proceedings are pending, in exceptional situations. This view is supported by judgments of the Andhra Pradesh High Court in *K.*

11 2024:HHC:7820 Omprakash vs. K. Nalini 10, Karnataka High Court in *Roopa Reddy vs. .*

Prabhakar Reddy¹¹, Delhi High Court in Dhanjit Vadra vs. Smt. Beena Vadra¹² and Madhya Pradesh High Court in Dinesh Kumar Shukla vs. Smt. Neeta¹³. Contrary view has been taken by Kerala High Court in M. Krishna Preetha vs. Dr. Jayan ¹⁰ AIR 1986 AP 167 (DB) ¹¹ AIR 1994 Kar 12 (DB) ¹² AIR 1990 Del 146 ¹³ AIR 2005 MP 106 (DB) Moorkkanatt¹⁴. It was submitted that Section 13B(1) relates to jurisdiction of the Court and the petition is maintainable only if the parties are living separately for a period of one year or more and if they have not been able to live together and have agreed that the marriage be dissolved. Section 13B(2) is procedural. He submitted that the discretion to waive the period is a guided discretion by consideration of interest of justice where there is no chance of reconciliation and parties were already separated for a longer period or contesting proceedings for a period longer than the period mentioned in Section 13B(2). Thus, the Court should consider the questions:

- i) How long parties have been married?
- ii) How long litigation is pending?
- iii) How long they have been staying apart?
- iv) Are there any other proceedings between the parties?
- v) Have the parties attended mediation/ conciliation?
- vi) Have the parties arrived at genuine settlement which takes care of alimony, custody of child or any other pending issues between the parties?

¹⁴ AIR 2010 Ker 157

14. The Court must be satisfied that the parties were living separately for more than the statutory period and all efforts at mediation and reconciliation have been tried and have failed and there is no chance of reconciliation and further waiting period will only prolong their agony.

15. We have given due consideration to the issue involved. Under the traditional Hindu Law, as it stood prior to the statutory law on the point, marriage is a sacrament and cannot be dissolved by consent. The Act enabled the court to dissolve marriage on statutory grounds. By way of amendment in the year 1976, the concept of divorce by mutual consent was introduced. However, Section 13B(2) contains a bar to divorce being granted before six months of time elapsing after filing of the divorce ¹² 2024:HHC:7820 petition by mutual consent. The said period was laid down to enable the .

parties to have a rethink so that the court grants divorce by mutual consent only if there is no chance for reconciliation.

16. The object of the provision is to enable the parties to dissolve a marriage by consent if the marriage has irretrievably broken down and to enable them to rehabilitate them as per available options. The amendment was inspired by the thought that forcible perpetuation of status of

matrimony between unwilling partners did not serve any purpose. The object of the cooling off the period was to safeguard against a hurried decision if there was otherwise possibility of differences being reconciled. The object was not to perpetuate a purposeless marriage or to prolong the agony of the parties when there was no chance of reconciliation. Though every effort has to be made to save a marriage, if there are no chances of reunion and there are chances of fresh rehabilitation, the Court should not be powerless in enabling the parties to have a better option.

17. In determining the question whether provision is mandatory or directory, language alone is not always decisive. The Court has to have the regard to the context, the subject matter and the object of the provision. This principle, as formulated in Justice G.P. Singh's "Principles of Statutory Interpretation" (9th Edn., 2004), has been cited with approval in *Kailash versus Nanhku and ors.*¹⁵ as follows:

15 (2005) 4 SCC 480 "The study of numerous cases on this topic does not lead to formulation of any universal rule except this that language alone most often is not decisive, and regard must be had to the context, subject-matter and object of the statutory provision in question, in determining whether the same is mandatory or directory. In an oft-

quoted passage Lord Campbell said: 'No universal rule can be laid down as to whether mandatory enactments shall be considered directory only or obligatory with an implied nullification for disobedience. It is the duty of courts of justice to try to get at the real intention of the legislature by carefully attending to the whole scope of the statute to be considered.' "

'For ascertaining the real intention of the legislature', points out Subbarao, J. 'the court may consider inter alia, the nature and design of the statute, and the consequences which would follow from construing it the one way or the other; the impact of other provisions whereby the necessity of complying with the provisions in question is avoided; the 13 2024:HHC:7820 circumstances, namely, that the statute provides for a contingency of .

the non-compliance with the provisions; the fact that the non-

compliance with the provisions is or is not visited by some penalty; the serious or the trivial consequences, that flow therefrom; and above all, whether the object of the legislation will be defeated or furthered'. If object of the enactment will be defeated by holding the same directory, it will be construed as mandatory, whereas if by holding it mandatory serious general inconvenience will be created to innocent persons without very much furthering the object of enactment, the same will be construed as directory." 18. Applying the above to the present situation, we are of the view that where the Court dealing with a matter is satisfied that a case is made out to waive the statutory period under Section 13B(2), it can do so after considering the following :

i) the statutory period of six months specified in Section 13B(2), in addition to the statutory period of one year under Section 13B(1) of separation of parties is already over before the first motion itself;

ii) all efforts for mediation/conciliation including efforts in terms of Order XXXIIA Rule 3 CPC/Section 23(2) of the Act/Section 9 of the Family Courts Act to reunite the parties have failed and there is no likelihood of success in that direction by any further efforts;

iii) the parties have genuinely settled their differences including alimony, custody of child or any other pending issues between the parties;

iv) the waiting period will only prolong their agony.

19. The waiver application can be filed one week after the first motion giving reasons for the prayer for waiver.

20. If the above conditions are satisfied, the waiver of the waiting period for the second motion will be in the discretion of the concerned Court.

21. Since we are of the view that the period mentioned in Section 13B(2) is not mandatory but directory, it will be open to the Court to exercise its discretion in the facts and circumstances of each case where there is no possibility of parties resuming cohabitation and there are chances of alternative rehabilitation."

17. It is quite apparent from the bare perusal of the aforesaid judgments passed by this Court (supra) and Hon'ble Apex Court that the very object of aforesaid provision is to enable the parties to dissolve a 14 2024:HHC:7820 marriage by consent, especially if marriage has broken irreparably and .

there is no possibility of rapprochement.

18. It goes without saying that the Court below while passing decree of divorce by way of mutual consent would take note of the terms and conditions, as detailed hereinabove and would also ensure that before grant of decree of divorce, entire amount of alimony agreed to be paid by the petitioner, is paid to the respondent.

19. Learned counsel for the parties undertake to cause presence of their respective clients before the Learned Family Court on 4.11.2024, so that statement of second motion is recorded and proceedings filed under Section 13 B of the Hindu Marriage Act, are taken to its logical end expeditiously. The petition stands disposed of in the aforesaid terms, alongwith all pending applications.

20. The parties are permitted to produce copy of this order downloaded from the High Court website and the trial Court shall not insist for certified copy of the order, however, it may verify the order from the High Court website or otherwise.

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September 2, 2024
(manjit)

(Sandeep Sharma),
Judge